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24-CIV-00269

HAMID KHAZAELI VS. DAVID A BREWER, ET AL.

LINE 4

HAMID KHAZAELI
DAVID A. BREWER

PRO PER
JOHN S. CLAASSEN

PLAINTIFF HAMID KHAZAELI'S MOTION TO COMPEL

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's unopposed Motion to Compel Further Responses to Plaintiff's Form Interrogatories Employment Law, Set No. One from David A. Brewer, Former NT Corporation, Notify Technology Corporation, Paul F. Depond, Robert Polychron (collectively "Defendants") filed October 20, 2025, 2025, is DENIED. Plaintiff's request for sanctions is DENIED.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion, filed October 20, 2025, seeks to compel further responses to Plaintiff's Form Interrogatories Employment Law, Set No. One,

- No. 211.1 from NTC,
- Nos. 200.1-200.4, 201.1- 201.7, 206.2-206.3, 207.2, 208.1, 211.2, 211.3, 214.1, 215.1, 215.2, 216.1 from all Defendants;

and challenges the validity of DocuSign electronic signatures from Defendants. Plaintiff also seeks a privilege log.

Plaintiff contends that the responses provided are ambiguous, evasive, incomplete, vague and contain meritless objections. Plaintiff requests sanctions of judgment against each of BREWER, FNTC, NTC, DEPOND, POLYCHRON, Attorney Claassen, and Claassen Law Corporation plus \$1,000 on each of BREWER, FNTC, NTC, DEPOND, POLYCHRON, Attorney Claassen, and Claassen Law Corporation plus the costs and fees of \$1,000 under Code of Civil Procedure sections 2023.030, 2023.040, 2023.050. The motion is unopposed.

B. Legal Standard

"[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery." (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) " 'The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]'

[Citation.]” (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)” (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(Code Civ. Proc., § 2017.010.)

Parties are reminded that “a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.)

Code of Civil Procedure, section 2030.010 provides

(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.

A party may respond to interrogatories, in writing and under oath by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., § 2030.210 subd. (a).) Code of Civil Procedure section 2030.220 states

(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

Pursuant to Code of Civil Procedure section 2030.300, the propounding party has 45 days of the service of the verified response, or any supplemental verified response, to file a motion to compel or the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [regarding interrogatories specifically].) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer.

(*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

C. Discussion

Initially, the Court finds the instant motion untimely. Plaintiff served the instant interrogatories on October 9, 2024. Defendants served their initial responses on January 27, 2025 (Pltf. Sep. Stmt. Ex. 2) and amended response on March 28, 2025. (Pltf. Sep. Stmt. Ex. 5.) Absent any agreement between parties to extend the time to file the instant motion, any motion to compel a further response was due no later than May 12, 2025, under Code of Civil Procedure section 2030.300. Plaintiff filed the instant motion on October 20, 2025, or 206 days late.

Plaintiff argues that an informal discovery conference (“IDC”) was scheduled for April 15, 2025, then continued to June 5, 2025, then to June 9, 2025, and finally held on July 24, 2025. Apparently though not clearly stated, plaintiff would like the Court to toll, or in other words pause, the time elapsed due to the IDC hearings, however the Court notes there is no such basis to do so in the relevant code section nor has Plaintiff presented any clear agreement to toll. Additionally, whether the hearings were continued on plaintiff’s request, defendants’ request, or the Court’s, is not stated and therefore there is no basis for equitable tolling. Regardless, **even if** the Court were required under the statute to toll the time for the IDC hearings, which it is not, the statutory “clock” would have started running on July 24, 2025, rendering Monday September 8, 2025, the deadline for the instant motion rendering the October 20, 2025 filing 42 days late. Thus, **under any scenario, the motion is untimely** and plaintiff has waived any right to compel a further response to the interrogatories.

In an abundance of caution, however, the Court exercises its discretion to review the responses on a substantive basis. To avoid repetition, the Court notes that all discovery responses are found in Plaintiff’s declaration filed in support of the instant motion Exhibit 2, and all amended discovery responses are found in Plaintiff’s declaration filed in support of the instant motion Exhibit 5. Upon review of these exhibits as well as the arguments set forth in plaintiff’s separate statement, the Court rules as follows:

With respect to NTC

211.1: Identify each type of BENEFIT to which the EMPLOYEE would have been entitled, from the date of the ADVERSE EMPLOYMENT ACTION to the present, if the ADVERSE EMPLOYMENT ACTION had not happened and the EMPLOYEE had remained in the same job position. For each type of benefit, state the amount the EMPLOYER would have paid to provide the benefit for the EMPLOYEE during this time period and the value of the BENEFIT to the EMPLOYEE.

RESPONSE: None, as the responding party has not been an “employer”.

AMENDED RESPONSE: Responding Party is not an employer and, as a non-employer, has no benefits to offer anyone.

ARGUMENT: “Defendants including Defendant NTC in response to initial disclosure themselves produced several years worth of redacted W2 forms issued by NTC as an employer which had been employed five or more employees for each year. Therefore NTC response is false. NTC must have responded truthfully to this interrogatory. NTC refused to amend this response.” (Sep. Stmt. p.44.)

RULING: DENY. The interrogatory has been answered. Plaintiff's speculation regarding the veracity of the answer does not support compelling a further amended response.

With respect to all Defendants

200.1 Do you contend that the EMPLOYMENT relationship was at "at will"? If so: (a) state all facts upon which you base this contention; (b) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of those facts; and (c) identify all DOCUMENTS that support your contention.

Defendant Depond RESPONSE: Not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none.

ARGUMENT: Here Plaintiff is simply asking defendants to identify whether the previous employment was at will.

RULING: DENY. A complete answer has been provided.

200.2 Do you contend that the EMPLOYMENT relationship was not "at will"? If so: (a) state all facts upon which you base this contention; (b) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of those facts; and (c) identify all DOCUMENTS that support your contention.

RESPONSE: Vague, ambiguous and not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., at will, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.)

RULING: DENY. A complete answer has been provided.

200.3 Do you contend that the EMPLOYMENT relationship was governed by any agreement—written, oral, or implied? If so: (a) state all facts upon which you base this contention; (b) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of those facts; and (c) identify all DOCUMENTS that support your contention.

RESPONSE: Vague, ambiguous, and not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., agreement, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.)

RULING: DENY. A complete answer has been provided.

200.4 Was any part of the parties' EMPLOYMENT relationship governed in whole or in part by any written rules, guidelines, policies, or procedures established by the EMPLOYER? If so, for each DOCUMENT containing the written rules, guidelines, policies, or procedures: (a) state the date and title

of the DOCUMENT and a general description of its contents; (b) state the manner in which the DOCUMENT was communicated to employees; and (c) state the manner, if any, in which employees acknowledged either receipt of the DOCUMENT or knowledge of its contents.

RESPONSE: Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous because it could refer either to matter upon which liability is alleged in Plaintiff's First Amended Complaint for failure to hire and failure to provide a reference or it could refer to matter on which liability was asserted in previous lawsuits, including a 2012 lawsuit and an approximately 2014 arbitration against Former NT for wrongful termination. Responding Party will interpret this interrogatory as seeking information about matter upon which liability in this Action is based. Subject to and without waiver of this objection, Responding Party responds as follows: not applicable as the plaintiff does not allege an employment relationship in this Action but rather the unlawful absence of one.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information (i.e., policies, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.) There is nothing vague and ambiguous about the 2012 and 2014 events.

RULING: DENY. A complete answer has been provided.

201.1 Was the EMPLOYEE involved in a TERMINATION? If so: (a) state all reasons for the EMPLOYEE'S TERMINATION; (b) state the name, ADDRESS, and telephone number of each PERSON who participated in the TERMINATION decision; (c) state the name, ADDRESS, and telephone number of each PERSON who provided any information relied upon in the TERMINATION decision; and (d) identify all DOCUMENTS relied upon in the TERMINATION decision.

RESPONSE: No.

AMENDED RESPONSE:

ARGUMENT: Responding Part(ies) agreed to amend its response initially, but refused to do so later. After the 7/24/25 IDC, Plaintiff attempted to further meet and confer regarding his Form Interrogatories, Set No. One, which was failed.

RULING: DENY. The answer is complete.

201.2 Are there any facts that would support the EMPLOYEE'S TERMINATION that were first discovered after the TERMINATION? If so: (a) state the specific facts; (b) state when and how EMPLOYER first learned of each specific fact; (c) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of the specific facts; and (d) identify all DOCUMENTS that evidence these specific facts.

RESPONSE: Responding Party objects to this interrogatory on the grounds that it could refer either to matter upon which liability is alleged in Plaintiff's First Amended Complaint for failure to hire and failure to provide a reference or it could refer to matter on which liability was asserted in previous lawsuits, including a 2012 lawsuit and an approximately 2014 arbitration against Former NT for wrongful termination. Responding Party will interpret this interrogatory to seek information about matter upon which liability is based in this Action. Subject to and without waiver of this objection, Responding Party responds as follows: not applicable.

AMENDED RESPONSE: none filed

ARGUMENT: Responding Part(ies) agreed to amend its response initially but refused to do so later. After the 7/24/25 IDC, Plaintiff attempted to further meet and confer regarding his Form Interrogatories, Set No. One, which failed. Based on the above, this court is encouraged to order the Responding Party to provide an amended fully compliant with the Code of Civil Procedure and truthful response.

RULING: DENY. A complete response has been provided.

201.3 Were there any other ADVERSE EMPLOYMENT ACTIONS, including (the asking party should list the ADVERSE EMPLOYMENT ACTIONS): Illegal harassment If so, for each action, provide the following: (a) all reasons for each ADVERSE EMPLOYMENT ACTION; (b) the name, ADDRESS, and telephone number of each PERSON who participated in making each ADVERSE EMPLOYMENT ACTION decision; (c) the name, ADDRESS, and telephone number of each PERSON who provided any information relied upon in making each ADVERSE EMPLOYMENT ACTION decision; and (d) the identity of all DOCUMENTS relied upon in making each ADVERSE EMPLOYMENT ACTION decision.

RESPONSE: No.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., adverse employment action, etc.). Each answer in response to interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.) (See also Deyo v. Kilbourne, (1978) 83 Cal.App.3d 771, 783 [“Answers must be complete and responsive...”])

RULING: DENY. A complete response has been provided.

201.4 Was the TERMINATION or any other ADVERSE EMPLOYMENT ACTIONS referred to in Interrogatories 201.1 through 201.3 based in whole or in part on the EMPLOYEE'S job performance? If so, for each action: (a) identify the ADVERSE EMPLOYMENT ACTION; (b) identify the EMPLOYEE'S specific job performance that played a role in that ADVERSE EMPLOYMENT ACTION; (c) identify any rules, guidelines, policies, or procedures that were used to evaluate the EMPLOYEE'S specific job performance; (d) state the names, ADDRESSES, and telephone numbers of all PERSONS who had responsibility for evaluating the specific job performance of the EMPLOYEE; (e) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of the EMPLOYEE'S specific job performance that played a role in that ADVERSE EMPLOYMENT ACTION; and (f) describe all warnings given with respect to the EMPLOYEE'S specific job performance.

RESPONSE: Not applicable.

AMENDED RESPONSE: none provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., EMPLOYEE'S performance, etc.). This is important background information and history. Responding Part(ies) understood exactly it relates to 2012 and 2014 showing fully familiar with them, but failed and refused to provide a proper response. 2012 and 2014 events are present in the First Amended Complaint. Illegal harassment and failure to hire and provide employment verifications were clearly alleged and are central in the First Amended Complaint in addition to evidence produced in opposition to Defendants' Anti-SLAPP motion. These are directly related to the subject matter of this litigation. Plaintiff requests a “truthful” response.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

201.5 Was any PERSON hired to replace the EMPLOYEE after the EMPLOYEE'S TERMINATION or demotion? If so, state the PERSON'S name, job title, qualifications, ADDRESS and telephone number, and the date the PERSON was hired.

RESPONSE: Not applicable.

AMENDED RESPONSE: None provided.

ARGUMENT: Adverse employment actions are central issues of this litigation. Propounding party is simply asking who was hired.

RULING: DENY. A complete response has been provided.

201.6 Has any PERSON performed any of the EMPLOYEE'S former job duties after the EMPLOYEE'S TERMINATION or demotion? If so: (a) state the PERSON'S name, job title, ADDRESS, and telephone number; (b) identify the duties; and (c) state the date on which the PERSON started to perform the duties.

RESPONSE: Not applicable.

AMENDED RESPONSE: None provided.

ARGUMENT: Propounding party is simply asking who did the job. Responding Part(ies) agreed to amend its response initially but refused to do so later. After the 7/24/25 IDC, Plaintiff attempted to further meet and confer regarding his Form Interrogatories, Set No. One, which failed.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

201.7 If the ADVERSE EMPLOYMENT ACTION involved the failure or refusal to select the EMPLOYEE (for example, for hire, promotion, transfer, or training), was any other PERSON selected instead? If so, for each ADVERSE EMPLOYMENT ACTION, state the name, ADDRESS, and telephone number of each PERSON selected; the date the PERSON was selected; and the reason the PERSON was selected instead of the EMPLOYEE .

RESPONSE: Not applicable as there was no adverse employment application.

AMENDED RESPONSE: None provided.

ARGUMENT: Adverse employment actions are central issues of this litigation. Propounding party is simply asking who was selected. Based on the above, this court is encouraged to order the Responding Party to provide an amended fully compliant with the Code of Civil Procedure and truthful response.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

206.2 State the name and ADDRESS of each agent or employee of the EMPLOYER who responded to any inquiries regarding the EMPLOYEE after the EMPLOYEE'S TERMINATION.

RESPONSE: Not applicable, as Responding Party is not alleged to have said anything about the plaintiff in the First Amended Complaint.

AMENDED RESPONSE: None Provided.

ARGUMENT:

RULING: DENY. A complete response has been provided.

206.3 State the name and ADDRESS of the recipient and the substance of each post-TERMINATION statement PUBLISHED about EMPLOYEE by any agent or employee of EMPLOYER.

RESPONSE: Not applicable, as Responding Party is not alleged to have said anything about the plaintiff in the First Amended Complaint

AMENDED RESPONSE: None provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., who and what received statement PUBLISHED about EMPLOYEE, etc.) This interrogatory is not dependent on anything alleged to have been said about the plaintiff in the First Amended Complaint. Propounding party is simply asking who and what statement PUBLISHED about EMPLOYEE. It cannot become more relevant than this.

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

207.2 Did the EMPLOYEE complain to the EMPLOYER about any of the unlawful conduct alleged in the PLEADINGS? If so, for each complaint: (a) state the date of the complaint; (b) state the nature of the complaint; (c) state the name and ADDRESS of each PERSON to whom the complaint was made; (d) state the name, ADDRESS, telephone number, and job title of each PERSON who investigated the complaint; (e) state the name, ADDRESS, telephone number, and job title of each PERSON who participated in making decisions about how to conduct the investigation; (f) state the name, ADDRESS, telephone number, and job title of each PERSON who was interviewed or who provided an oral or written statement as part of the investigation of the complaint; (g) state the nature and date of any action taken in response to the complaint; (h) state whether the EMPLOYEE who made the complaint was made aware of the actions taken by the EMPLOYER in response to the complaint, and, if so, state how and when; (i) identify all DOCUMENTS relating to the complaint, the investigation, and any action taken in response to the complaint; and (j) state the name, ADDRESS, and telephone number of each PERSON who has knowledge of the EMPLOYEE'S complaint or the EMPLOYER'S response to the complaint.

RESPONSE: Responding Party objects to this interrogatory on the grounds that the word "complain" is undefined, vague and ambiguous. In the context of this lawsuit, it could refer to his direct testimony or allegations during a trial in early 2020 against Responding Party or "complain" could refer to utilizing an employer's informal channels to bring allegations of impropriety to the attention of the employer.

Responding Party interprets this interrogatory to refer to the latter. Subject to and without waiver of the foregoing objection, Responding Party responds as follows: not that Responding Party is aware of.

NTC and Defendant Depond respond: No.

AMENDED RESPONSE: None provided.

ARGUMENT: Responding Parties also acquired significant amount information and evidence from Plaintiff's opposition to their Anti-SLAPP motion which were ignored in their responses here. This information is required for trial preparation. Propounding party is simply asking information about complaining to Responding Part(ies).

RULING: DENY. A complete response has been provided. No basis has been provided to the Court, other than Plaintiff's unsupported speculation, that defendants' answer(s) lack veracity.

208.1 Did the EMPLOYEE file a claim, complaint, or charge with any governmental agency that involved any of the material allegations made in the PLEADINGS? If so, for each claim, complaint, or charge: (a) state the date on which it was filed; (b) state the name and ADDRESS of the agency with which it was filed; (c) state the number assigned to the claim, complaint, or charge by the agency; (d) state the nature

of each claim, complaint, or charge made; (e) state the date on which the EMPLOYER was notified of the claim, complaint, or charge; (f) state the name, ADDRESS, and telephone number of all PERSONS within the governmental agency with whom the EMPLOYER has had any contact or communication regarding the claim, complaint, or charge; (g) state whether a right to sue notice was issued and, if so, when; and (h) state whether any findings or conclusions regarding the complaint or charge have been made, and, if so, the date and description of the agency's findings or conclusions

RESPONSE: Responding party states that he or it does not have knowledge sufficient to respond fully to this interrogatory and states that such information is equally available to the plaintiff.

AMENDED RESPONSE: None provided.

ARGUMENT: The interrogatory is asking for specific information (i.e., filing a claim, complaint, or charge with any governmental agency, etc.). Responding Part(ies) were obligated to provide the requested information. Responding Parties, at least, acquired this information from information and evidence produced with Plaintiff's opposition to their Anti-SLAPP motion and the First Amended Complaint which were ignored in their responses here.

RULING: DENY. A complete response has been provided.

211.2 Do you contend that the EMPLOYEE has not made reasonable efforts to minimize the amount of the EMPLOYEE'S lost income? If so: (a) describe what more EMPLOYEE should have done; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of the facts that support your contention; and (c) identify all DOCUMENTS that support your contention and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.

RESPONSE: Yes. Responding Party does not appear to be employed and does not appear to have attempted to find employment in good faith. (a) Work in good faith to obtain employment, (b) The plaintiff and Paul Depond (in care of Claassen Law Corp. 1990, N. California Blvd., 8th Floor, Walnut Creek, CA 94596, 925-04-3885).

AMENDED RESPONSE:

ARGUMENT: Defendants failed to respond to subsection (c)

RULING: DENY. The information sought is provided in subsection (b).

211.3 There is no argument relating to 211.3 thus this request is STRICKEN.

214.1 At the time of the ADVERSE EMPLOYMENT ACTION, was there in effect any policy of insurance through which you were or might be insured in any manner for the damages, claims, or actions that have arisen out of the ADVERSE EMPLOYMENT ACTION? If so, for each policy state: (a) the kind of coverage; (b) the name and ADDRESS of the insurance company; (c) the name, ADDRESS, and telephone number of each named insured; (d) the policy number; (e) the limits of coverage for each type of coverage contained in the policy; (f) whether any reservation of rights or controversy or coverage dispute exists between you and the insurance company; and (g) the name, ADDRESS, and telephone number of the custodian of the policy.

RESPONSE: No.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information about insurance coverage. "No." is incomplete, non-responsive, evasive and non code compliant response. Each answer in response to

interrogatories shall be as complete and straightforward as the information available to the responding party permits. (Code Civ. Pro. § 2030.220.) (See also *Deyo v. Kilbourne*, (1978) 83 Cal.App.3d 771, 783 [“Answers must be complete and responsive...”]) Plaintiff requires this information for evaluation, adjusctication and payment of alleged damages among under things. Responding parties were obligated to disclose all of their insurance information, but failed. For example, Defendant BREWER had admitted to the Plaintiff that he had such insurance. It also makes sense that Defendant BREWER to carry such insurance. He has been an attorney and a venture capitalist with tens of millions of dollars in wealth and investments. For someone at that level of wealth and investment to carry insurance or umbrella insurance is an essential part of business and life.

RULING: DENY. A complete response has been provided.

215.1 Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each individual state: (a) the name, ADDRESS, and telephone number of the individual interviewed; (b) the date of the interview; and (c) the name, ADDRESS, and telephone number of the PERSON who conducted the interview.

RESPONSE: Responding Party objects to this interrogatory on the grounds that, to the extent it seeks information about who the Responding Party’s attorney has chosen to interview, it seeks the disclosure of an attorney’s thoughts and impressions regarding which allegations are material and which allegations are not. Such information is protected by the attorney work product privilege and work product privilege and Responding Party objects to providing such information. Responding Party also objects to this interrogatory to the extent it seeks the disclosure of any other information or communications that are protected by the attorney-client privilege or attorney work product privilege. Subject to and without waiver of the foregoing objections, Responding Party responds as follows: no.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information about witnesses. “No.” is incomplete, non-responsive, evasive and non code compliant response. Responding parties were obligated to disclose all of their witness, but failed. For example, there are at least six or seven known fact character witnesses only for BREWER and FNTC that were not disclosed in the prior litigation. Similarly, there are additional witnesses for other defendants. Responding parties and their attorney also must have at least interviewed the Responding parties in this regard. They all must be disclosed.

RULING: DENY. A complete response has been provided.

215.2 Have YOU OR ANYONE ACTING ON YOUR BEHALF obtained a written or recorded statement from any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each statement state: (a) the name, ADDRESS, and telephone number of the individual from whom the statement was obtained; (b) the name, ADDRESS, and telephone number of the individual who obtained the statement; (c) the date the statement was obtained; and (d) the name, ADDRESS, and telephone number of each PERSON who has the original statement or a copy.

RESPONSE: No.

AMENDED RESPONSE: none

ARGUMENT: The interrogatory is asking for specific information about evidence. “No.” is incomplete, non-responsive, evasive and non code compliant response. Responding parties were obligated to disclose all of their witness, but failed. For example, there are at least six or seven known fact character witnesses only for BREWER and FNTC that were not disclosed at the prior litigation. The response shall provide sufficient factual information for other part(ies) to evaluate the merits of that claim, including, if

necessary, a privilege log. Defendants failed to produce a privilege log and the required sufficient factual information. All “non-derivative” materials should have been provided.

RULING: DENY. A complete response has been provided. There is no need for a privilege log when the answer to the question is negatory.

216.1. Identify each denial of a material allegation and each special or affirmative defense in your PLEADINGS and for each: (a) state all facts upon which you base the denial or special or affirmative defense; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (c) identify all DOCUMENTS and all other tangible things, that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.

RESPONSE:

AMENDED RESPONSE: (summarized) seeks the disclosure of an attorney’s thoughts and impressions; is vague, ambiguous, overbroad and unintelligible as to what is meant by the term “material allegation,” thereby precluding a meaningful response; is burdensome and oppressive. “At this time, discovery is ongoing as to the facts, persons, and documents that will support the intended denials and affirmative defenses. Notably, Responding Party is unable to further respond to this interrogatory at this time because the plaintiff’s deposition has yet to be taken. Accordingly, this interrogatory is premature and inappropriate. Responding Party reserves all rights to supplement its response.”

ARGUMENT: The interrogatory is asking for specific information about facts, identification of denial and material allegation, special and affirmative defenses. The response is incomplete, non-responsive, evasive and non-code compliant. Responding parties were obligated to disclose all responsive information and documents but failed. For example, Responding Parties failed to identify and address all facts about their affirmative defenses, among other things. They must have addressed them. Moreover, Responding Parties failed to seek and receive a protective order and express authorization from third parties to disclose requested information and documents allegedly in third parties personal files and confidential business information or competitively sensitive information.

RULING: DENY. The amended response is over two pages in length. Plaintiff’s dissatisfaction with the answer provided is not a basis to require further response.

D. Validity of DocuSign Signatures

The validity and usage of electronic signature verification, including DocuSign, was addressed in the Court’s February 2, 2026 Minute Order at the hearing for plaintiff’s motion to compel further responses to Plaintiff’s Request for Production of Documents, Set One. The February Order stated wet-ink signatures were not required at this time because electronic verifications are permissible under the Uniform Electronic Transactions Act, subject to authentication. The Court does not find any circumstances, nor any compelling argument, to alter this decision.

E. Sanctions

Sanctions are authorized against a party who unsuccessfully brings a motion to compel further directed at interrogatories unless the Court finds the party made the motion with substantial justification or other circumstances make the sanction unjust. (Code Civ. Proc. § 2030.300, subd. (d).) Similarly, sanctions are mandatory against any party, person, or attorney who unsuccessfully makes or opposes a motion to

compel a further response unless other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2033.290, subd. (d).)

The court does not find circumstances rendering a sanction just therefore the request is DENIED. To the extent plaintiff seeks attorney's fees such request is DENIED. (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 520 [party litigating his or her own case not entitled to fees].)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

09:00 AM

25-CIV-02045 NIZAR SHEHADEH VS. LUCID GROUP USA, INC.

LINE 5

NIZAR SHEHADEH
LUCID GROUP USA, INC.

ASHLEY J. YADDGO
AMY MACLEAR

PLAINTIFF NIZAR SHEHADEH'S MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

Plaintiff Nizar Shehadeh's Motion for Attorney Fees, Costs, and Expenses, is GRANTED-in-part, as follows:

Reasonableness of Fees

A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code section 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.)

Plaintiff requests a lodestar fee award of \$21,912.50 and an additional \$4,658.86 for time spent reviewing the Opposition, preparing the Reply, and anticipated time to appear at the hearing. (Cline Decl., ¶3; Johnson Decl. ISO Reply, ¶7.) This represents 36.8 hours of attorney and staff time expended at hourly rates varying from \$275 to \$800. (Cline Decl., ¶7, Exh. 2.) Plaintiff presents evidence that the rates charged by each billing attorney are comparable those of similar experience levels in other Song-Beverly cases in the region and that similar rates have been approved in the past. (*Id.*, at ¶¶12-30.) Plaintiff's evidence is sufficient to show that the rates charged are the prevailing rate in the community for similar work by attorneys of comparable skill, experience, and reputation.

Defendant argues that fee rates should be reduced to a blended rate of \$350. (Opp. at p. 2:26 – 4:2.) However, most of the cases Defendants point to are from 2021 or older, are federal cases, and are not specific to this community. Defendants therefore have not rebutted Plaintiff's evidence that the rates charged are comparable those of similar experience levels in other Song-Beverly cases in the region.

Defendant next argues that Plaintiff's request contains inflated hours, based on improperly billing for clerical work disguised by block billing. For example, Plaintiff's paralegal billed .3 hours on March 24, 2025 to: "Receive and review court returned documents. Update file and notify attorney re: same. Review register of actions and update calendar. Notes to file re: same." (Cline Decl., ¶7, Exh. 2.) Defendant objects to this entry as clerical work billed as "0.3 hours for, in part, calendaring dates." The clerical element of updating the calendar that is noted within this work is minimal relative to the substantive work of reviewing documents and adding notes to the file, and therefore likely falls within a minimum increment of .1 billable hours. This does not warrant a reduction in the time billed. The same is true of the other objections for clerical work.

Defendant also objects to 8.3 hours billed throughout the case for, at least in part, legal research, arguing that it is unclear how it was necessary or useful here. (Opp. at p. 6:13-18.) This is a speculative